Our Ref: SJM:EP:2023:520

22 November 2023

Ms H A Cooke
213 Morgan Street
MEREWETHER NSW 2291

By Email Only: heather111fiin@gmail.comn

URGENT

Dear Ms Cooke,

Re: Cooke & Cooke - Family Law Matter

We act on behalf of Stephen Cooke in relation to his family law parenting and property matter.

We understand that you have also engaged a lawyer and if that is the case, we ask that you provide them with a copy of this letter and have them contact us.

At the outset, we note that our client is hopeful that this matter can be resolved by way of amicable negotiation, without the need for the stress, delay and added costs of litigation.

Background

We are instructed as to the background of this matter as follows:

1. You commenced cohabitation on 24 September 2011;

2. You were married on 26 September 2014;

3. There are two (2) children of the relationship, namely Christian Finn Cooke, born 20 August 2014 who is currently 9 years of age and Joshua Finn Cooke, born 27 January 2017 who is currently 6 years of age; and

4. You separated on a final basis on 17 November 2023.

Parenting

We are instructed that you and our client continue to reside under the same roof in the former matrimonial home located at Unit 1/213 Morgan Street, Merewether NSW 2291. However, we are further instructed that these current living arrangements are unsustainable.

In addition to the unsustainable living arrangements, our client maintains concerns that you are discussing future parenting arrangements with the children, in the absence of any agreement in relation to same. In particular, we are instructed that Christian appears to be distressed and adversely affected by the exposure to conflict. We ask that you refrain from having any further discussions with the children regarding parenting arrangements.

Moving forward, our client wishes to ensure stability and consistency for the children and thus proposes to remain living in the Merewether property with the children and continue in his role as the primary carer. In such circumstances, our client proposes that you obtain alternative accommodation in the interim.

If you are agreeable to vacating the Merewether property, our client proposes that the children spend each weekend with you on an interim basis, from the conclusion of school on Friday (or 3:00pm) until the beginning of school on Monday (or 9:00am) [Stephen, could you confirm your instructions in relation to this proposal?]. If the above is not agreed, our client welcomes any counter-proposal you may have in that regard. In the event that no agreement is reached following initial negotiations, we propose that you both attend mediation as a matter of priority.

Property

Pursuant to Rule 6.06 of the *Federal Circuit and Family Court of Australia (Family Law) Rules 2021*, each party is required to make full and frank disclosure of their financial circumstances. Therefore, we ask that you provide us with your disclosure in accordance with the ***enclosed*** document entitled: *'Disclosure Documents Checklist.'*

We are instructed that you have unilaterally removed the following sums of money:

1. $29,750 from account ending #2594 on DATE – [Stephen to provide the date];
2. $173,000 from account ending #5063 on DATE - [Stephen to provide the date]; and
3. $166,037 from account ending #7778 on DATE - [Stephen to provide the date].

Please note that the assets, liabilities and superannuation of both parties are subject to division in this matter, irrespective of legal ownership.

In light of the above, we ask that you confirm, in writing, the whereabouts of the above money and that it will be placed into your lawyer's trust account pending final resolution of the property matter as a matter of urgency.

In the event that we do not receive confirmation in writing that the funds are placed in your lawyer's trust account within **seven (7) days,** then our client reserves his right to file an

Application in the Federal Circuit and Family Court without further notice to you and will be seeking urgent injunctive orders restraining you from dealing with the assets of the property pool. If necessary, our client will also seek that you pay his legal fees associated with the Application. We sincerely hope this course will not be necessary.

Spousal Maintenance and Interim Distribution of Funds

We are instructed that you and our client came to an informal agreement regarding financial support of our client, in circumstances where our client is unemployed and where you are in receipt of a full-time salary. This agreement was that you are to pay our client periodic maintenance of $5,000 per month and that you would be paying for all utilities, mortgages, and associated property expenses for a period of 12 months. This agreement was reached with a view to our client achieving a level of financial stability post-separation.

Lastly, we ask whether you would also be agreeable to an interim distribution of funds to our client by way of partial property settlement in the sum of $25,000? This will assist our client in the payment of his legal fees and will be accounted for in any future property settlement.

We look forward to hearing from you or your legal representative within seven (7) days.

Yours faithfully,



Samantha Miller

Director and Principal Solicitor

Clarity Lawyers

BSc LLB Dip. Leg. Prac

LLM (Applied Law) Majoring in Family Law

email: samantha@claritylawyers.com.au

Encl.

DRAFT